

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0007753

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: JOSHUA FOSTER

vs.

DEFENDANT: GOLDEN GATE BRIDGE
HIGHWAY AND TRANSPORTATION
DISTRICT

NATURE OF PROCEEDINGS: MOTION – CHANGE OF VENUE

RULING

Plaintiff Joshua Foster’s motion to transfer venue is DENIED.

FACTUAL BACKGROUND

This action arises out of Plaintiff Joshua Foster’s (“Plaintiff”) employment with Defendant Golden Gate Bridge Highway and Transportation District (“Defendant”). On October 23, 2023, Plaintiff, an African-American male, began working for Defendant as an environmental, health and safety specialist. He alleges he was subject to discrimination and harassment based on race. He also alleges he was retaliated against for raising concerns and filing formal complaints regarding workplace safety violations. Plaintiff was terminated on September 27, 2024.

On September 25, 2025, Plaintiff filed this action. On January 8, 2026, Plaintiff filed his operative First Amended Complaint (“FAC”) alleging the following causes of action: 1) race and national origin discrimination; 2) hostile work environment harassment; 3) failure to prevent and remedy harassment under FEHA; 4) retaliation under Labor Code section 6310; and 5) retaliation under Labor Code section 1102.¹ The FAC alleges that Plaintiff lives in San Rafael and venue is proper in Marin County because Defendant’s principal place of business is located in San Rafael. (FAC ¶¶ 4-5.)

After substitution of new counsel, Plaintiff filed the present motion wherein he seeks to transfer venue to Sacramento County or another neutral county with no relationship to Defendant. (Code

¹ On February 10, 2026, Plaintiff dismissed his 6th cause of action for intentional infliction of emotional distress. On March 3, 2026, the parties filed a stipulation to dismiss the prayer for punitive damages, which the Court entered as an order on March 16, 2026.

of Civ. Proc.², §§ 394 and 397.) He argues Defendant is a local public agency that has governmental, fiscal, and representative ties to Marin County. He also argues there is reason to believe an impartial trial cannot be held in Marin County.

LEGAL STANDARD

The grounds upon which a court may transfer the action are entirely statutory. (Cal. Prac. Guide Civ. Pro. Before Trial (The Rutter Group June 2025 Update), Ch. 3-D, § 3:549.) On timely motion, the court must order a transfer of an action “when the court designated in the complaint is not the proper court.” (Code of Civ. Proc., §§ 396b, 397(a); *Rycz v. Sup. Ct.* (2022) 81 Cal.App.5th 824, 836.) The question of whether venue is proper is determined at the outset of the action based upon the original complaint. (*Brown v. Superior Court* (1984) 37 Cal.3d 477, 482; *Armstrong Petroleum Corp. v. Superior Court* (1981) 114 Cal.App.3d 732, 738.)

Code of Civil Procedure section 394 provides that an action against a local agency may be tried in the county in which the local agency is situated. (Code of Civ. Proc. Code § 394, subd. (a).) Section 394 provides two transfer mechanisms. When a local agency sues a nonresident in its own county, the case “shall be, on motion of either party, transferred” to a neutral county. (*Id.*) When a local agency is sued, the action “must be, on motion of that defendant, transferred.” (*Id.*)

Section 397 authorizes the Court to change the place of trial: “(b) [w]hen there is reason to believe that an impartial trial cannot be had therein.” This does not mean a party must prove an impartial trial cannot be had, only that there is reason to believe it. (*Id.*) The purpose of this provision is to secure to every litigant the right to a trial of his or her cause before a fair and impartial tribunal, and to provide the procedure through which the right may be enforced and protected. (*Paesano v. Superior Court* (1988) 204 Cal.App.3d 17.) A motion pursuant to section 397 subdivision (b) requires “a showing of actual prejudice to the moving party, and whether the showing has been made is left to the discretion of the trial court.” (*Ohio Casualty Ins. Group v. Superior Court* (1994) 30 Cal.App.4th 444, 452.) A “limited showing [that] does not demonstrate a widespread feeling of prejudice extending over a long time” is insufficient. (*Nguyen v. Superior Court* (1996) 49 Cal.App.4th 1781, 1791.) When discussing the impartiality of a trial, “[a]n impartial trial means a trial impartial as to all litigants therein.” (*People v. Ocean Shore R.R.* (1938) 24 Cal.App.2d 420, 424.)

DISCUSSION

The parties do not seriously dispute that the District is a local agency under section 394. *Golden Gate Bridge, Highway & Transp. Dist. v. Superior Court* (2004) 125 Cal.App.4th 177, 184 [concluding Defendant was a local agency under section 394 for purposes of its motion to transfer venue out of a foreign county].) However, the plain language of section 394 does not authorize a private plaintiff to invoke it to move an action out of the local agency defendant’s home county. Indeed, Plaintiff offers no authority applying section 394 to permit such a transfer by an individual plaintiff. Plaintiff’s motion is therefore denied insofar as it relies on section 394.

² All further statutory references are to the Code of Civil Procedure unless otherwise specified.

Plaintiff also invokes section 397, subdivision (b) asserting he cannot have an impartial trial. In his motion, Plaintiff states Defendant's "purpose is to operate and maintain the Golden Gate Bridge and provide public transit services, and that the District Board has four Marin County representatives appointed through Marin County channels. The District Board itself is composed of 19 members representing six counties." (Memo. of Points and Authorities, 4:9-13.) Plaintiff also states that "a coworker said Black people 'do not live in Marin County.'" (*Id.*, 10:17-20.) Plaintiff's counsel submits a declaration stating "Defendant is situated and where Marin County has governmental, fiscal, and representative ties to the District." (Declaration of Elias Fakhoury ("Fakhoury Decl."), ¶ 3.) He concludes that "Sacramento is the most neutral forum for this action given the potential bias issues that may arise in other nearby counties." (*Id.*, ¶ 5.)

However, Plaintiff presents no direct evidence to support these conclusions. Counsel claims no personal knowledge of Defendant, its Board, its finances or the Marin County jury pool, and instead relies on speculation. He also does not identify what the potential "issues" he refers to actually are. The pleaded allegation that a coworker remarked that Black people "do not live in Marin County," this does not appear to concern any prospective juror, and is unaccompanied by any evidence about the Marin County jury venire. Plaintiff also failed to state why any hypothetical juror bias could not be eliminated during voir dire. (§ 225, subd. (1)(C).) Plaintiff has not shown that an impartial trial cannot be had in Marin County. Plaintiff's motion is denied.

Finally, Defendant has requested that the Court award it their attorneys' fees and costs incurred in connection with opposing the motion. If the motion is made upon the ground that the action was filed in an "improper" county, the court may order the losing party's counsel to pay the prevailing party's reasonable expenses and attorney fees in making or resisting the motion. (§ 396b(a), (b).) Section 396b does not apply to the instant motion. The request for fees is DENIED.

For the foregoing reasons, Plaintiff's motion for change of venue is DENIED. The case shall remain in the Superior Court of California, County of Marin.

Parties must comply with Marin County Superior Court Local Rule 2.10(A)–(B). A party seeking oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person; direct contact with counsel or the parties is not required. Absent timely notice to the Court and all parties, no oral argument will be permitted except by order. If no party properly requests oral argument, the tentative ruling becomes the order of the Court..

***IT IS ORDERED* Evidentiary hearings are in person in Department L. Routine appearances may be made by video using the link on the Court's website. When your case is called, turn on your camera and ensure the appearing party or lawyer is properly identified on screen.**

***FURTHER ORDERED* Parties are responsible for maintaining a reliable connection and being available throughout the remote hearing. If a party's connection is inadequate, the Court may proceed in that party's absence. Participants determined to be driving during the hearing will be removed from the virtual courtroom. (Yes, this happens).**

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0008299

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: AMERICAN EXPRESS
NATIONAL BANK

vs.

DEFENDANT: DIANNE HARTNETT

NATURE OF PROCEEDINGS: MOTION – SUMMARY JUDGMENT

RULING

Plaintiff American Express National Bank’s unopposed motion for summary judgment is GRANTED. Plaintiff established the loan agreement, performance by funding, Defendant’s default and acceleration, and damages of \$85,227.30. (Code Civ. Proc., § 437c, subds. (c), (p)(1).) Plaintiff has met its burden showing no triable issues of material fact exist as to any of the alleged causes of action.

Facts

Plaintiff filed this action on November 5, 2025, against defendant Dianne Hartnett (“Defendant”) alleging a cause of action for breach of contract.

Defendant applied to Plaintiff for a loan and entered into a written agreement with Plaintiff to be bound by the terms and conditions set forth in the Truth in Lending disclosure agreement, including the terms of the loan and acceptance of the agreement. (Plaintiff’s Separate Statement of Undisputed Material Facts (“SS”) Nos. 1-7.) Defendant used the funds, and Plaintiff complied with its obligations under the Agreement. (SS Nos. 3, 4.) There is no record of Defendant asserting an objection to the amount of the balance due and owing on the monthly statements that were provided to the Defendant, reflecting all debts and credits to Defendant’s account. (SS Nos. 4-5.)

Defendant defaulted on the loan, and Plaintiff accelerated the account balance so that the entire unpaid balance on the account became immediately due and payable. (SS No. 7.) Defendant owes Plaintiff \$85,227.30 on the principal balance. (SS No. 7.)

Standard for Summary Judgment